

Non-Solvency II Firms ? Senior Managers Regime ? Applications and Notifications

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Application and Definitions

1.1

Unless otherwise stated, this Part applies to a small non-directive insurer.

1.2

In this Part, the following definitions shall apply:

commencement date

has the meaning given in Non-Solvency II Firms - Senior Managers Regime - Transitional Provisions.

current approved person approval

means

1. (1) an approval granted to a person under section 59 of FSMA (Approval for particular arrangements):

1. (a) by the PRA for the performance of a PRA senior management function ; or

2. (b) by the FCA for the performance of an FCA-designated senior management function or a significant influence function ;

2. (2) a deemed approval given by:

1. (a) the PRA following the submission of a conversion notification ; or

2. (b) by the FCA under any relevant rules in the FCA Handbook ; or

3. (3) for the purposes of 2.5(2) and 2.6(1), an approval granted to that person under section 59 of FSMA by either the PRA or the FCA to perform a controlled function prior to the commencement date but which ceased (i) on or before the commencement date ; and (ii) during the six-month period specified in 2.5(2) and 2.6(1), as the case may be.

regulatory body

means any authority, body or person having, or who has had, responsibility for the supervision or regulation of any regulated activities or other financial services, whether within the United Kingdom or overseas.

significant influence function

has the meaning given in the FCA Handbook.

2

Application to Perform a PRA Senior Management Function

2.1

The _PRA_ directs that a _firm_ must make a _PRA senior management approval application_ in accordance with 2.2, before the activities requiring approval commence.

2.2

The _PRA_ directs that a _firm_ must use Form A (long form) for a _PRA senior management approval application_ unless:

1. (1) the _firm_ must use Form E under 2.3; or
2. (2) the _firm_ must use Form A (shortened form) under 2.6.

2.3

The _PRA_ directs that, subject to 2.4 and 2.5, a _firm_ must use Form E for a _PRA senior management approval application_ if it is being made in respect of a _person_ who has a _current approved person approval_ and is either:

1. (1) ceasing to perform a _PRA senior management function_ and taking up a new _PRA senior management function_ for the same _firm_ or another member of its _group_ ; or
2. (2) ceasing to perform an _FCA-designated senior management function_ or a _significant influence function_ and taking up a _PRA senior management function_ for the _firm_ or another member of its _group_.

2.4

The _PRA_ directs that a _firm_ must not use Form E for a _PRA senior management approval application_ if:

1. (A1) a notification has been or should be made to the _PRA_ or _FCA_ under any of the following:
 1. (a) section 63(2A) of _FSMA_ (Duty to notify regulator of grounds for withdrawal of approval);
 2. (b) section 64C of _FSMA_ (Requirement for authorised person to notify regulator of disciplinary action);
2. (1) a notification has been made or should be made to the _PRA_ under any of the rules in Notifications 11 or to the _FCA_ under any equivalent provisions of the _FCA Handbook_ ;
3. (2) any of the circumstances in 4.2(2)(a) to (d) apply in relation to:
 1. (a) any _controlled function_ that that _person_ is ceasing to perform; or
 2. (b) any _controlled function_ that that _person_ is continuing to perform in relation to that _firm_ or a _firm_ in the same _group_.

2.5

The _PRA_ directs that a _firm_ must not use Form E if the _person_ to whom the _PRA senior management approval application_ relates:

1. (1) has never before been approved:
 1. (a) by the _PRA_ to perform a _controlled function_ ; or
 2. (b) by the _FCA_ to perform an _FCA-designated senior management function_ or a _significant influence function_ for any _firm_;
2. or
3. (2) has not been the subject of a _current approved person approval_ in relation to any _firm_ for more than six _months_ prior to the date of application.

2.6

1. (1) The _PRA_ directs that a _firm_ must use Form A (shortened form) for a _PRA senior management approval application_ if:

1. (a) the _person_ to whom the application relates:

1. (i) has at the time of application a _current approved person approval_ ; or

2. (ii) has had a _current approved person approval_ within the previous six _months_ ; and

2. (b) there have been no matters arising in relation to the fitness and propriety of the _person_ to whom the _PRA senior management approval application_ relates which mean that the information provided to the _FCA_ or _PRA_ regarding fitness and propriety in connection with a _current approved person approval_ may have changed since the application for the _current approved person approval_ was made.

2. (2) The _PRA_ directs that a _firm_ must not use Form A (shortened form) if the circumstances set out in 2.3 apply.

2.7

The _PRA_ directs that the form submitted for a _PRA senior management approval application_ must be accompanied by a _statement of responsibilities form_.

3

Withdrawal of a Senior Management Approval Application

3.1

The _PRA_ directs that a _firm_ withdrawing an outstanding _PRA senior management approval application_ must do so using Form B.

4

Ceasing to Perform a PRA Senior Management Function

4.1

1. (1) A _firm_ must notify the _PRA_ no later than seven _business days_ after a _person_ permanently ceases to perform a _PRA senior management function_ , using:

1. (a) Form E pursuant to the direction in 2.3 if a _person_ permanently ceases to perform a _PRA senior management function_ and the _firm_ is also making an application for the same _person_ to perform a new _PRA senior management function_ ; and

2. (b) in all other cases, Form C.

4.2

1. (1) A _firm_ must notify the _PRA_ as soon as practicable after it becomes aware, or has information which reasonably suggests, that it will submit a qualified Form C in respect of a _PRA senior management function holder_.

2. (2) Form C is qualified if the information it contains:

1. (a) relates to the fact that the _firm_ has dismissed, or suspended, the _PRA senior management function holder_ from its employment;

2. (b) relates to the resignation by the _PRA senior management function holder_ while under investigation by the _firm_ , the _PRA_ or any other _regulatory body_ ;

3. (c) includes a notification under any of the provisions set out in 2.4(A1) or (1); or

4. (d) otherwise reasonably suggests that it may affect the _PRA's_ assessment of the _PRA senior management

function holder's fitness and propriety.

4A

Application to Vary a Conditional Approval

4A.1

The _PRA_ directs that a _firm_ making an application to the _PRA_ under section 63ZA of _FSMA_ (for the variation of a conditional approval) must do so by submitting:

1. (1) Form I; and
2. (2) a _statement of responsibilities form_ for the _PRA approved person_ concerned.

4A.2

The _PRA_ directs that a _firm_ withdrawing an application made under section 63ZA of _FSMA_ (Variation of senior manager's approval at request of relevant authorised person) must do so using Form B.

5

Change in Details Relating to PRA Senior Management Function Holders

5.1

If a _PRA senior management function holder's_ title, name or national insurance number changes, the _firm_ for which the _person_ performs a _PRA senior management function_ must notify the _PRA_ of that change within seven _business days_ of the _firm_ becoming aware of the matter, using Form D.

5.1A

If a _PRA senior management function holder_ has been temporarily absent for more than a 12 week period, the _firm_ for which the _person_ performs a _PRA senior management function_ must notify the _PRA_ of:

1. (1) that absence within seven _business days_ of the end of the 12 week period; and
2. (2) the _PRA senior management function holder's_ return from absence within seven _business days_ of the date of their return,

in each case, using Form D.

5.2

If, in relation to a _firm_ which has submitted an application on either Form A (long or shortened form) or Form E, as required by 2.2, any of the details relating to _PRA senior management functions_ are to change, the _firm_ must notify the _PRA_ using Form D as soon as reasonably practicable after the _firm_ becomes aware of the proposed change.

5.3

The _PRA_ directs that if a _PRA senior management function holder_ ceases to perform a _PRA senior management function_ for a _firm_ but continues to perform one or more _PRA senior management functions_ for the same _firm_ , the _firm_ must submit a revised _statement of responsibilities form_ for the remaining _PRA senior management function(s)_ , along with Form J.

If a _PRA senior management function holder_ has been temporarily absent for more than a 12 week period, the _firm_ for which the _person_ performs a _PRA senior management function_ must notify the _PRA_ of:

1. (1) that absence within seven _business days_ of the end of the 12 week period; and
2. (2) the _PRA senior management function holder?s_ return from absence within seven _business days_ of the date of their return,

in each case, using Form D.

6

Procedure for Making Applications and Notifications

6.1

The _PRA_ directs that, save as required by 6.2, a _firm_ must make any applications, notifications or submissions required by this Part by submitting the form specified using the _ONA system_.

6.2

If, under any direction or rule in this Part:

1. (1) a _firm_ is required to make an application, notification or submission online; and
2. (2) the information technology systems used by the _PRA_ fail and online submission is unavailable for 24 hours or more,

until such time as facilities for online submission are restored, a _firm_ must submit the specified form in the way set out in Notifications 7.

6.3

1. (1) The _PRA_ directs that, if a _firm_ is required to submit a revised _statement of responsibilities_ under section 62A of _FSMA_ , it must do so by submitting Form J with the revised statement of _statement of responsibilities_.
2. (2) The _PRA_ directs that a _firm_ must not use Form J where the revisions are to be made as part of arrangements involving an application:
 1. (a) for approval for the _person_ performing the _PRA senior management function_ concerned to perform another _PRA senior management function_ or _FCA-designated senior management function_ for the same _firm_ ; or
 2. (b) to vary under section 63ZA of _FSMA_ an approval for the _person_ performing the _PRA senior management function_ concerned to perform another _PRA senior management function_ or _FCA-designated senior management function_ for the same _firm_.

7

Forms

7.1

1. (1) Form A (long form) is available on the _PRA's_ website.
2. (2) Form A (shortened form) is available on the _PRA's_ website.
3. (3) Form B is available on the _PRA's_ website.
4. (4) Form C may be found here.
5. (5) Form D may be found here.
6. (6) Form E is available on the _PRA's_ website.
7. (6A) Form I is available on the _PRA's_ website.
8. (6B) Form J is available on the _PRA's_ website.

9. (7) The _statement of responsibilities form_ is available on the _PRA's_ website.